

TENTATIVE RULING

People of the State of California

v.

\$11,000 U.S. Currency

25CV001381

Petitioner's Motion to Deem Matters Admitted

Hearing Date: August 14, 2026

The motion by Petitioner People of the State of California ("Petitioner") for an order that the truth of the matters specified in Petitioner's Request for Admissions, Set One ("RFA"), to Real Party in Interest Gina Cervantes ("Real Party") be deemed admitted is **GRANTED**.

The initial penalty for a party's failure to respond promptly to an RFA is a waiver of any objection to the requests, including those based on privilege or work product protection. [Code Civ. Proc. § 2033.280, subd. (a).] Failing to respond to an RFA does not automatically mean admissions. Instead, the propounding party must "move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction" under Code of Civil Procedure section 2033.010 et seq. [Code Civ. Proc. § 2033.280, subd. (b).] Specifically, a court "shall" grant a deemed-admitted motion "unless [the court] finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." [Code Civ. Proc. § 2033.280, subd. (c).]

On June 23, 2025, Petitioner served its RFA on Real Party. [Eubanks Decl. at ¶ 7 and Exh. A.] After granting her extensions, Real Party served unverified RFA responses on March 2, 2026. [*Id.* at ¶ 9 and Exh. B.] After the parties met and conferred on March 3, 2026, Real Party stated she would provide amended and verified RFA responses. [*Id.* at ¶ 10.] To date, Real Party has not served her amended and verified RFA responses. [*Id.* at ¶¶ 9-12.] Real Party also failed to oppose this motion.

Accordingly, Petitioner's motion is **GRANTED**. The genuineness of any documents and the truth of any matters specified in Petitioner's RFA to Real Party are deemed admitted. [*Wilcox v. Birtwhistle* (1999) 21 Cal.4th 973, 979 ("[A] deemed admitted order establishes, by judicial fiat, that a nonresponding party has responded to the requests by admitting the truth of all matters contained therein.")] The Court shall complete the Proposed Order accompanying the motion.

NOTE RE TENTATIVE RULING: This tentative ruling becomes the court's order, and no hearing shall be held unless one of the parties contests it by following Rule 3.1308 of the California Rules of Court and Monterey County Local Rule 7.9. Those parties wishing to present an oral argument must notify all other parties and the Court no later than 4:00 p.m. on the court day before the hearing; otherwise, **NO ORAL ARGUMENT WILL BE PERMITTED, AND THE TENTATIVE RULING WILL BECOME THE ORDER OF THE COURT AND THE HEARING VACATED.** You must notify the court by [email](#) or by calling the Calendar Department at 831-647-5800, extension 3040, before 4:00 p.m. on the court day before the hearing.